

STATE OF NEW YORK

7197--A

2025-2026 Regular Sessions

IN SENATE

April 3, 2025

Introduced by Sens. ADDABBO, COMRIE, SCARCELLA-SPANTON, STAVISKY -- read twice and ordered printed, and when printed to be committed to the Committee on Energy and Telecommunications -- recommitted to the Committee on Energy and Telecommunications in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public service law, the New York city fire code, the town law and the village law, in relation to setback requirements relating to the siting of battery energy storage systems

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The public service law is amended by adding a new section 74-c to read as follows:

§ 74-c. Municipal assistance. 1. The department, in coordination with the office of renewable energy siting and electric transmission, the New York state energy research and development authority, and the department of state, shall prepare and make available to municipalities, information relating to the siting of battery energy storage systems with a capacity over five megawatts, including, but not limited to, model local laws, regulations, or ordinances related to, setback requirements which shall be at least seven hundred fifty feet from a dwelling, house, farm building, or school building that is actually occupied or used and for a city with a population of one million or more inhabitants such setback requirement shall be at least three hundred feet from a dwelling, house, farm building, or school building that is actually occupied or used. Such setback requirements may vary based on the capacity of the battery energy storage system and may set a further distance appropriate to ensure the safety of any occupants against fire or other potential reasonable dangers.

2. For purposes of this section, "battery energy storage system" shall have the same meaning as "qualified energy storage system" as defined in

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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subdivision one of section seventy-four of this chapter, except that it shall not include energy storage systems that use mechanical or thermal processes.

§ 2. Section 104.1.2 of the New York city fire code, as amended by local law number 47 of the city of New York for the year 2022, is amended to read as follows:

104.1.2 Review of design and installation. The commissioner may authorize the Department of Buildings to review construction documents filed with that agency for compliance with the design and installation requirements of this code for stationary energy storage systems, fire apparatus access roads, rooftop access and obstructions, and such other design and installation requirements as the commissioner, in consultation with the Commissioner of Buildings, may determine facilitates the design and construction process. The commissioner shall require the establishment of minimum setback requirements for commercial energy storage systems, with a capacity of five megawatts or greater, of no less than three hundred feet from residential property. The manner and scope of such review and the standards to be applied thereto shall be established by the commissioner in consultation with the Commissioner of Buildings, consistent with FC104.2.1.

§ 3. Section 104.2 of the New York city fire code, as amended by local law number 47 of the city of New York for the year 2022, is amended to read as follows:

104.2 Applications and approvals. The department shall receive, review and, if satisfactory, approve, applications for permits, certificates and other approvals, and design and installation documents required to be submitted to the department by this code or the construction codes, issue permits, inspect buildings, structures, facilities, premises, marine vessels, watercraft and motor vehicles for the purpose of enforcing compliance with the requirements of this code, and otherwise administer, implement and enforce the provisions of this code. When reviewing applications for commercial energy storage systems, with a capacity of five megawatts or greater, the department shall ensure that prior to the approval of any application for any applicable permit, request for tax exemption, or commencement of any other regulatory approval process, at least one public hearing has been held in the community district in which such storage is proposed to be sited.

§ 4. Section 263 of the town law, as amended by chapter 459 of the laws of 2021, is amended to read as follows:

§ 263. Purposes in view. 1. Such regulations shall be made in accordance with a comprehensive plan and designed to lessen congestion in the streets; to secure safety from fire, flood, panic and other dangers; to promote health and general welfare; to provide adequate light and air; to prevent the overcrowding of land; to avoid undue concentration of population; to make provision for, so far as conditions may permit, the accommodation of solar thermal, photovoltaics, wind, hydroelectric, geothermal electric, geothermal ground source heat, tidal energy, wave energy, ocean thermal, farm waste electric generating equipment as defined in paragraph (e) of subdivision one of section sixty-six-j of the public service law, ~~and~~ fuel cells, and battery energy storage systems as defined in section seventy-four-c of the public service law; to facilitate the practice of forestry; to facilitate the adequate provision of transportation, water, sewerage, schools, parks and other public requirements. Such regulations shall be made with reasonable consideration, among other things, as to the character of the district and its peculiar suitability for particular uses, and with a view to

1 conserving the value of buildings and encouraging the most appropriate
2 use of land throughout such municipality.

3 2. Regulations related to battery energy storage systems as defined in
4 section seventy-four-c of the public service law may include, but shall
5 not be limited to, minimum setback requirements from residential proper-
6 ty pursuant to section seventy-four-c of the public service law.

7 § 5. Section 7-704 of the village law, as amended by chapter 459 of
8 the laws of 2021, is amended to read as follows:

9 § 7-704 Purposes in view. 1. Such regulations shall be made in accord-
10 ance with a comprehensive plan and designed to lessen congestion in the
11 streets; to secure safety from fire, panic, floods and other dangers; to
12 promote health and the general welfare; to provide adequate light and
13 air; to prevent the overcrowding of land; to avoid undue concentration
14 of population; to make provision for, so far as conditions may permit,
15 the accommodation of solar thermal, photovoltaics, wind, hydroelectric,
16 geothermal electric, geothermal ground source heat, tidal energy, wave
17 energy, ocean thermal, farm waste electric generating equipment as
18 defined in paragraph (e) of subdivision one of section sixty-six-j of
19 the public service law [and], fuel cells, and battery energy storage
20 systems as defined in section seventy-four-c of the public service law;
21 to facilitate the adequate provision of transportation, water, sewerage,
22 schools, parks and other public requirements. Such regulations shall be
23 made with reasonable consideration, among other things, as to the char-
24 acter of the district and its peculiar suitability for particular uses,
25 and with a view to conserving the value of buildings and encouraging the
26 most appropriate use of land throughout such municipality.

27 2. Regulations related to battery energy storage systems as defined in
28 section seventy-four-c of the public service law may include, but not to
29 be limited to, minimum setback requirements from residential property
30 pursuant to section seventy-four-c of the public service law.

31 § 6. Notwithstanding the amendments to section 263 of the town law
32 made by section four of this act and the amendments to section 7-704 of
33 the village law made by section five of this act, nothing in this act
34 shall be construed to require any town or village to amend applicable
35 local building code or zoning regulations.

36 § 7. This act shall take effect on the one hundred eightieth day after
37 it shall have become a law and shall only apply to comprehensive plans
38 established or amended on or after such effective date.